Fort Bend County District Court

Cause No. 2023-CV-0034

Michael Gilbert, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	November 15, 2023
Plaintiff's counsel:	Matthew Day, Cooper & Quinn LLP

PARTIES

Plaintiff is Michael Gilbert, an individual residing in Texas, who brings this action in his or her own right.

Defendant is an automobile insurance carrier authorized to transact business in the State of Texas, which may be served through its registered agent for service of process.

FACTS

On March 26, 2023, Plaintiff was lawfully operating his or her vehicle on a public roadway in Houston, Texas, when a vehicle traveling in the opposite direction crossed into Plaintiff's lane and struck Plaintiff's vehicle head-on. The collision occurred at a low rate of speed, but the impact was sufficient to jolt Plaintiff's body forward and backward within the vehicle. The at-fault driver was insured under a policy issued by Defendant, which accepted responsibility for the claim and assigned it for handling. Plaintiff submitted notice of the loss and supporting documentation as required under the policy and applicable Texas law. Defendant has not paid the amounts owed under the policy for Plaintiff's injuries and related losses.

NEGLIGENCE

The at-fault driver owed a duty to operate the vehicle with reasonable care, keep a proper lookout, and remain within the proper lane of travel. That driver breached that duty. Defendant, as the insurer that issued coverage to the at-fault driver and undertook to hnadle this claim, owed Plaintiff a duty of good faith and fair dealing and a duty to comply with the Texas Insurance Code and the Texas Administrative Code in evaluating and settling claims. Defendant breached those duties by failing to promptly and fairly evaluate the claim, failing to offer a reasonable settlement where liability was reasonably clear, and delaying payment without a reasonable basis.

DAMAGES

As a direct result of the collision, Plaintiff sustained a neck strain and a back strain, with pain, stiffness, limited range of motion, and ongoing need for treatment. Plaintiff has incurred medical expenses, lost wages, and diminished earning capacity, and has suffered physical pain and mental anguish. Plaintiff seeks actual damages, statutory penalties and interest, and attorney's fees as permitted by law, in an amount not less than $213,000.00.